

Consequences of Not Adhering to Health and Safety Legislation

Health and safety legislation is designed to safeguard the personal safety, health and wellbeing of individuals – whether employees, customers, suppliers or members of the public. The aim is to reduce the risk of accidents, injuries and illnesses. For example, since the Health and Safety at Work Act's (HSWA) introduction in 1974, the rate of fatal injuries amongst workers has declined steadily in the UK – from 2.1 fatalities per 100,000 workers in 1981, to 0.42 in 2023 to 2024.¹

Because of health and safety's importance, if organisations or individuals breach related legislation, the consequences can be severe. These are examined in more detail below.

Reduced performance, productivity and morale

Work-related illness and workplace injury are responsible for the loss of many millions of working days per year – through extended periods of absence, reduced hours or unemployment.

However, another crucial factor is lower productivity while at work as a result of mental and physical illness or injury. This is sometimes called 'presenteeism' – when employees feel the need to work despite being unwell – and research shows that it can be even more damaging to businesses than absenteeism. Indeed, evidence suggests that for every day of work time lost due to absenteeism, 1.5 days are lost to presenteeism, with double the costs to businesses – around £21.2 billion each year.²

Increased absence and presenteeism put stress not only on those directly affected, but also on colleagues whose workloads may be impacted as a result. This can reduce motivation and morale, which in turn may lead to further reductions in performance and productivity.

Legal action

If an organisation is found to have breached the HSWA and its associated regulations and statutes, the organisation is usually guilty of a criminal offence.

In this situation, the Health and Safety Executive (HSE) might send verbal or written advice. The company may also be served with a 'prohibition notice' – which means that the organisation has to stop the specified dangerous activity. Alternatively, or sometimes in addition, a business may receive an 'improvement notice' – which means that the company has to take steps to fix the issue.³ If the HSE has to help the organisation remedy the situation, it will charge a 'fee for intervention' (FFI).

¹ Health and Safety Executive (2024). Work-related fatal injuries in Great Britain, 2024. Annual statistics. Available at: <https://www.hse.gov.uk/statistics/assets/docs/fatalinjuries.pdf> [Accessed 8 May 2025]

² Bryan, M. L., Bryce, A. M. and Roberts, J. (2022). Dysfunctional presenteeism: Effects of physical and mental health on work performance. *The Manchester School*, 90(4), pp. 409–438. Available at: <https://onlinelibrary.wiley.com/doi/10.1111/man.12402> [Accessed 8 May 2025]

³ Health and Safety Executive (N.D.). Health and safety at work: criminal and civil law. Available at: <https://www.hse.gov.uk/simple-health-safety/law/health-safety-law.htm> [Accessed 8 May 2025]

Even worse, the result may be prosecution in a court of law, which could lead to fines. There is now no upper limit to the amount that an organisation can be fined for a health and safety legislation breach, with fines of millions of pounds not uncommon for serious offences. For example, in 2022, Northern Gas Networks Ltd failed to maintain a gas main, which led to an explosion that killed a woman in West Yorkshire. The company was fined £5 million for the breach and ordered to pay court costs of around £91,500.⁴

In addition, organisations may face civil lawsuits filed by injured employees, which can lead to substantial compensation payouts as well.

Individuals can also be prosecuted under the HSWA. Typically this will be those responsible for running an organisation – directors or business owners. If found guilty, directors may be liable for fines or imprisonment.⁵ They may also be liable for disqualification from being a director in future, under the Company Directors Disqualification Act 1986.⁶ For example, being found guilty of gross negligence causing death could carry a charge of gross negligence manslaughter, which is punishable by an unlimited fine and a maximum of life imprisonment.

Indeed, it's important to note that any employee may be found in breach of the HSWA if they fail to take reasonable care for their own health and safety or that of others,⁷ which can again lead to an unlimited fine or a maximum of two years' imprisonment.⁸

Reputational damage

Legal and financial consequences are bad enough in themselves, but they can also cause huge damage to a company's reputation – particularly when the news of health and safety violations or workplace accidents spreads. As a result, organisations can become less appealing to customers, investors, prospective employees and the public. Similarly, individuals' reputations may also become tarnished, forever damaging their career prospects.

Individuals affected by the breach

As discussed, health and safety breaches can cause significant legal, financial and reputational consequences for the individuals and organisations responsible. However, it's just as important to consider those who are directly affected – whether by illness from exposure to hazardous substances, injuries from tripping in an obstructed walkway, or neck pain due to improper use of display screen equipment.

⁴ BBC News (2022). Northern Gas Networks fined £5m over Mirfield house explosion. Available at: <https://www.bbc.co.uk/news/uk-england-leeds-60322518> [Accessed 8 May 2025]

⁵ Health and Safety Executive (N.D.). Legislation on leading health and safety. Available at: <https://www.hse.gov.uk/leadership/legislation.htm> [Accessed 8 May 2025]

⁶ Health and Safety Executive (N.D.). Legislation on leading health and safety. Available at: <https://www.hse.gov.uk/leadership/legislation.htm> [Accessed 8 May 2025]

⁷ Health and Safety Executive (N.D.). Proceeding against employees. Available at: <https://www.hse.gov.uk/enforce/enforcementguidesc/identifying/employees.htm> [Accessed 8 May 2025]

⁸ Health and Safety Executive (N.D.). Penalties. Available at: <https://www.hse.gov.uk/enforce/enforcementguide/court/sentencing-penalties.htm> [Accessed 8 May 2025]

Indeed, the consequences of non-compliance can be devastating and even life-changing for those affected – not just in terms of physical trauma or illness but also individuals' mental and financial wellbeing, as well as that of their families.